

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

JOINT STATUS REPORT 6 (FEBRUARY 2026)

Pursuant to 46 C.F.R. §502.141(h), the December 3, 2025 Second Amended Scheduling Order, (the “Order”) Samsung Electronics America, Inc., (“Complainant” or “SEA”), and Orient Overseas Container Line Limited, and OOCL (Europe) Limited (“Respondents” or “OOCL”)(and collectively, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report. As directed by the July 1, 2025, Scheduling Order, the Parties each report on their respective discovery processes:¹

¹ Each Party has prepared its respective portion of this Joint Status Report. Accordingly, execution of this Report by a Party shall not be interpreted as agreement by that Party with statements made herein by the other Party.

Claimant – Samsung Electronics America, Inc.

1. DISCOVERY:

a. Current Status

SEA has fully completed its production of documents and other discovery obligations as of November 24, 2025. To date, SEA has produced 240,155 documents comprising 1,058,752 pages. OOCL has produced 13,980 documents comprising 57,713 pages.

Despite OOCL's repeated claims that it had completed its production of documents and discovery responses months earlier, including a representation to that effect in the January 5, 2026 Status Report, OOCL continues to produce trickles of supplemental productions, most recently on January 9, 2026. It is unclear to Complainant if additional productions are to be expected. OOCL's production still does not reflect document collection efforts from the actual Respondents in this matter – Orient Overseas Container Line Limited, headquartered in Hong Kong, and OOCL (Europe) Limited, headquartered in England, or contain documentation evidencing the cause of transportation delays while the containers at issue in this matter were in the custody and control of OOCL. Efforts to resolve the current discovery disputes collaboratively through conferences and correspondence have been unsuccessful thus far.

b. Overview of Discovery and Motions Actions

SEA has continued to review and analyze the data produced thus far by OOCL despite the deficiencies noted in SEA's Motion to Compel Discovery. With respect to discovery and motions progress between the Parties since January 1st:

- **January 5, 2026:** SEA and OOCL submitted their 5th Joint Status Report in which SEA noted its completion of production, and OOCL represented that it had also completed its document production as of that date.

- **January 9, 2026:** OOCL produced an additional 223 documents (4,044 pages). SEA provided OOCL with the digital overlay containing the requested document tags to facilitate OOCL's review of SEA's production.
- **January 20, 2026:** OOCL filed a Motion to Compel Discovery with regard to two interrogatories.
- **January 23, 2026:** SEA filed a Motion to Compel Discovery with regard to ten interrogatories, twelve requests for production, and more broadly OOCL's failure to conduct searches for responsive documents from the Respondents and its failure to produce documents related to key issues in this matter that are known to be in its possession, such as documentation of the transportation delays incurred while the containers were in OOCL's custody and control.
- **January 25, 2026:** OOCL notified SEA that it would be filing a Motion to Strike SEA's Motion to Compel Discovery claiming that it exceeded the 10-page limit by reason of argument in its appendices, or in the alternative requesting permission to exceed the page limit in its response and to be allowed an additional seven days to respond.
- **January 26, 2026:** SEA advised that it would oppose OCCL's Motion to Strike and requests for additional time, but would not oppose the request for additional pages.
- **January 27, 2026:** SEA filed its Opposition to Respondent's Motion to Compel Discovery. OOCL filed its Emergency Motion to Strike and for Additional Relief. Due to the emergency nature of OOCL's motion, the Presiding Officer ordered SEA to respond not later than 5 p.m. on January 28.

- **January 28, 2026:** SEA filed its Opposition to Respondent’s Emergency Motion to Strike.
- **January 29, 2026:** The Presiding Officer issued an Order denying OOCL’s request to strike SEA’s Motion to Compel, but granting OOCL’s requests for an additional seven days to respond and for an additional 45-pages for that response. The Presiding Officer also encouraged the parties to “use the additional time granted in order to reach an agreement regarding some of the outstanding discovery issues” in each of the respective motions to compel.
- **January 30, 2026:** The parties conferred to explore the possibility of agreement on some of the outstanding discovery issues between the parties.
- **February 4, 2026:** SEA confirmed by letter, items which the parties discussed and which impact SEA’s Motion to Compel Discovery. A copy of that letter is attached.

2. PENDING MOTIONS

a. SEA’s Motion to Compel Discovery.

SEA submits that OOCL has failed to comply with its discovery obligations. OOCL’s response is due on February 5, 2026.

b. OOCL’s Motion to Compel Discovery

OOCL has moved to compel answers to two interrogatories. SEA filed its Opposition to OOCL’s Motion to Compel on January 27, 2026; therefore briefing is complete.

c. Petition for Attorney’s Fees

On January 26, 2026, SEA submitted a Petition for Attorney’s Fees for the work associated with responding to OOCL’s Counterclaims, including the Motion to Dismiss the Counterclaim, the Reply to the Opposition to the Motion to Dismiss, the Opposition to OOCL’s Appeal of the

Dismissal of the Counterclaim, the Motion to Dismiss the Amended Counterclaim, and the Reply to OOCL's Opposition to the Motion to Dismiss the Amended Counterclaim. SEA is also preparing a supplemental declaration to identify the fees associated with the Petition itself.

3. MEDIATION

On December 15, 2025, SEA proposed a mediator to OOCL, who agreed to consider the proposed mediator. On January 8, 2026, OOCL proposed an alternate mediator. Upon review, SEA advised that the proposed alternate would not be suitable. SEA requested OOCL's position on the originally proposed mediator, but OOCL has not yet confirmed its position.

Respondents, Orient Overseas Container Line Limited and OOCL (Europe) Limited

Since the last Joint Status Report filed January 5, 2026 (JSR5), Respondents report the following activity of the Parties:²

A. Discovery

1. Respondents' Supplemental Production

After several conferences to discuss the subject, Complainant agreed to limit its document requests and on January 9, OOCL made a limited supplemental production of documents numbered OOCL_0053670 - OOCL_0057674. This small and focused production of only 223 documents consisted of one type of invoice from a single terminal for demurrage charges. It was certainly not a "document dump." This production was made after SEA agreed to limit its otherwise wide-ranging requests for documents to the terminals through which the shipments

² Respondents' understanding of the instructions of the Order dated July 1, 2025 (Doc. 61) is to jointly report the status of discovery. Respondents therefore do not wish to unnecessarily waste the time of the Presiding Officer by reporting or characterizing public filings.

relevant to SEA's claims had actually moved, rather than all terminals at which OOCL vessels called, which is what the scope of what SEA had originally requested.

2. Complainant's "Production Overlay"

Throughout December 2025, Counsel for Respondents had requested a discussion with Complainant's e-Discovery team so that it might understand the assertion that the over 1 million documents produced by Complainant included "electronic tags" that would identify the Interrogatory or document request that each document was responding to. Respondents' attorneys and e-discovery team spent considerable time analyzing the files and by December 22, determined that no additional fields referring to interrogatory numbers or document requests were included in any of the documents produced, despite Complainant's assertions otherwise.

Having heard nothing further, Counsel for Respondents repeated these requests on January 6, 2026, to which counsel for Complainant advised he had "been coordinating with our vendor to provide instructions for utilizing the electronic tags." Instead of instructions, an electronic "production overlay" was transmitted on January 12, which took several days for Respondents e-Discovery team to upload. By January 17, Respondents had determined that the "production overlay" was simply an expansion, and exacerbation of, SEA's data dump. Rather than succinctly identify the request or interrogatory to which a document was responsive, the field provided by the overlay would generically enumerate twenty or more discovery requests. Rather than enable OOCL to effectively ascertain how documents produced by SEA were responsive to OOCL's focused requests, Complainant's "production overlay" sent OOCL on a wild goose chase because it was so wildly broad.

Furthermore, data in the overlay pointed Respondents to documents that were completely irrelevant to SEA's claims against OOCL, and which were instead relevant to claims SEA may

have asserted against other ocean carriers. One example of this data dump, and SEA's production of documents completely irrelevant to its claims against OOCL, was SEA's production of nearly 12,000 arrival notices from cargo moved by CMA CGM and at least as many attachments to same. In each instance, SEA tagged the materials as responsive to "ROG 26;SEA ACTIONS DOCUMENTATION (ROG 32, RFP 22);ROG 15;DISPUTE RESOLUTION (ROG 30, RFP 20)." Each of the attachments relating to CMA CGM's arrival notices appears to have been tagged the same way. Each of these SEA tags corresponds with tens of thousands of documents, and one corresponds with hundreds of thousands of documents. Notably, since they are not related at all to the claim against OOCL, they are meaningless and confirm SEA's efforts to derail OOCL's efforts to identify responsive documents from SEA's production which are relevant to SEA's claims.

By the time it had finally determined that the "production overlay" was useless, Respondents had spent *over a month* and significant expense relying on Complainant's assertions that it had somehow "tagged" the documents with responsive designations. Counsel for OOCL hunted for documents responsive to its interrogatories and document requests, only to find it had completely wasted its time and efforts.

3. Meet and Confer

On January 29, 2026, in response to the Presiding Officer's January 29, 2026 Order, which encouraged the parties to reach agreement on some of the outstanding discovery issues, Respondents requested a meet and confer with Complainant to discuss narrowing discovery disputes. The Parties duly conferred on January 30.

As a result of this meeting, Complainant confirmed its agreement to withdraw from its Motion to Compel discovery requests for information about terminals other than Long Beach

Container Terminal (LBCT) and Maher Terminal in New York, as the Parties had previously agreed. Similarly, as no SEA shipments relevant to this claim were moved by rail (and as the Parties had previously agreed), Complainant also agreed to withdraw all requests for any discovery regarding rail terminals (also known as intermodal terminals).

The following issues were also raised and discussed during the meeting and are still subject to further consideration:

- Responsiveness of Interrogatory nos. 3 and 4;
- Narrowing of the time frames referenced in Interrogatory nos. 7 and 14;
- Quarterly revenues/profits requested in Interrogatory no. 6;
- Clarification of documents referenced in Appendix 1 – SEA will consider providing copies.

The results of the parties' discussion are confirmed in the attached letter dated February 4, 2026 and will be incorporated in OOCL's response to SEA's Motion to Compel.

B. Mediation

On January 8, Respondents proposed a mediator, who was rejected by Complainant on January 30. Complainant remains willing to mediate the dispute, but to date the Parties have not reached any agreement to do so.

Dated: February 4, 2026

MILLS BLACK LLP

By: /s/ **Peter F. Black**

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Respectfully Submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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secretary@fmc.gov
2. Hon. Richard Ambrow - *Administrative Law Judge*
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Dated: February 4, 2026

By: /s/ **Peter F. Black**



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February 4, 2026

VIA EMAIL

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Re: *FMC Docket No. 24-17 - SEA v. OOCL*

Dear Rebecca and Chris:

This letter memorializes the parties' meet and confer of Friday, January 30, 2026, regarding outstanding discovery matters as encouraged by Judge Ambrow's Emergency Order issued on January 29, 2026.

SEA addresses the following issues discussed at the meeting:

1. *Use of Rail in Transporting Containers from the Terminals*

SEA confirms prior meet and confer discussions regarding OOCL's lack of rail used to transport SEA containers and therefore rail transport need not be addressed in the discovery responses, specifically with respect to "rail data" in Interrogatory No. 3, and "rail agreements" with respect to Interrogatory Nos. 6 & 7.

2. *SEA's Appendix 1 to its Motion to Compel Discovery – Bates Numbering*

OOCL identified an issue with respect to the Bates numbering on SEA's Appendix 1. After review, SEA found that the documents in Appendix 1 were identified by internal identification numbers rather than Bates numbering. The Bates Numbers for the documents identified in Appendix 1 are as follows:

1. SEA_00377079 —> **24-17_SEA_00006313**

2. SEA_00244738 —> **24-17_SEA_00002232**
3. SEA_00143621 —> **24-17_SEA_00000441**
4. SEA_00244547 —> **24-17_SEA_00002207**
5. SEA_00377079 —> **24-17_SEA_00006313**
6. SEA_00271992 —> **24-17_SEA_00002775**
7. SEA_00156733 —> **24-17_SEA_00000761**
8. SEA_00178032 —> **24-17_SEA_00000869**
9. SEA_03552012 —> **24-17_SEA_00051724**
10. SEA_03430998 —> **24-17_SEA_00049902**

SEA has pulled these documents and is sending them with this correspondence for ease of reference.

3. *Demurrage and Detention Financials (Rog Nos. 6, 14, 15 & RFP No. 9)*

SEA reiterated that documents and information reflecting OOCL's detention and demurrage financials, including cost, profit, revenue, and pricing information, are relevant to SEA's claims and OOCL's defenses. This information bears directly on when and how OOCL determined that its individual detention and demurrage charges on a per-day basis align with the FMC's incentive principle and the relevant balancing that OOCL may or may not have done in connection with that determination. It is SEA's position that whether OOCL's demurrage and detention charges operated as an incentive mechanism strikes at the heart of the issue with respect to the reasonableness of OOCL's charges.

OOCL requested that SEA review Judge Ambrow's Initial Decision in *Visual Comfort & Co., v. Cosco Shipping Lines Co., Ltd.*, 2025 WL 1662697, *26-27 (2025) and then assess if SEA retained its position with respect to its request for financial data. While SEA notes the ALJ's decision with respect to the use of the financial data in the context of the Initial Decision and Complainants' proof on the merits, SEA maintains that such information is discoverable, and the Initial Decision to which OOCL points does not state otherwise.

4. *Scope of Interrogatory No. 7*

SEA's Interrogatory No. 7 requests "OOCL's Policies for arranging and providing Inland Transportation of Containers under Store Door terms for 2018 to Present." OOCL takes issue with the time period of "2018 to Present" as overly broad and has limited its response to January 2020 to December 2023.

After review, SEA confirms its position that the time period from shortly before the shipments at issue to after the shipments at issue remains relevant and discoverable, presumably with minimum burden to OOCL. However, SEA agrees that the time period of January 2020 to December 2023 is sufficient for this Interrogatory.

5. *Scope of Interrogatory No. 14*

SEA's Interrogatory No. 14 requests "the total amount of Demurrage charges for each fiscal quarter of each year from 2020 to 2025 that OOCL charged SEA in connection with SEA Shipments moving under Store Door terms." OOCL takes issue with the time frame of this Interrogatory. After review, SEA confirms its position that the relevant period for this request is 2020 to 2025.

6. *Sufficiency of OOCL's Supplemental Response to Interrogatory No. 3*

SEA again reviewed OOCL's supplemental response to Interrogatory No. 3, and in light of our conference and the further clarification provided by OOCL, SEA deems the Supplemental Response to be sufficient. Accordingly, SEA withdraws this item from its Motion to Compel.

7. *Sufficiency of OOCL's Supplemental Response to Interrogatory No. 4*

SEA again reviewed OOCL's Supplemental Response to Interrogatory 4 and it remains insufficient. While conceivable that OOCL may not have policies regarding terminal-level items and commendable that OOCL's policy is to adhere to the requirements of applicable laws and agreements, the response does not adequately clarify OOCL's policies with respect to the determination of last free day (e), extension of Free Time or waiver of detention charges (f), or whether detention was assessed or charged on dates when the applicable terminal was not open or reasonably accessible (g) and how the answers to those may have changed during the Relevant Time (h), particularly given the numerous updates to its DD Management Guidelines during the relevant period.

8. *OOCL – Bates Range Typo in Interrogatory Nos. 3 & 4*

OOCL confirmed it would advise with respect to the Bates range typos in its Supplemental Responses to SEA Interrogatory Nos. 3 & 4. SEA awaits the corrected Bates identifiers.

9. *Necessity of Arrival Notices and Long-dwell Letters in OOCL's Production*

The parties also discussed arrival notices and long-dwell letters (also known as LFD Advice notes). SEA reconfirmed the importance of receiving these document categories. OOCL clarified that multiple arrival notices are issued for each shipment, which SEA acknowledged.

SEA has requested this information since its initial RFPs submitted on July 24, 2025. SEA continued to make this request at various meet and confers, memorialized by letters dated and November 14, 2025, and December 19, 2025.

10. *Mediation*

OOCL requested SEA's position with respect to its suggested mediator. SEA reconfirmed its earlier response that its proposed mediator was not acceptable to SEA, due to both his age and

his record of conflict concerns.

SEA then sought OOCL's position on the mediator it proposed back on December 15, 2025; SEA noted that the potential mediator had advised, contrary to earlier concerns, that he would be willing to travel to New York, NY or Washington, DC for a mediation, and that he was experienced with FMC demurrage and detention issues. OOCL stated that they were still reviewing and would revert.

11. *Post-Conference Requests – February 3, 2026*

Subsequent to the January 30th conference, OOCL requested confirmation of two additional points:

- a. That SEA agrees to withdraw discovery requests for information about terminals other than Long Beach Container Terminal (LBCT) and Maher Terminal in New York.
- b. Whether OOCL's Response to SEA's Interrogatory No. 6 is adequate.

SEA has previously confirmed, and reconfirms here, that it seeks only information related to its containers arriving through LBCT and Maher Terminal in New York. To clarify, this would include any storage yard or facility used in connection with SEA containers subsequent to their arrival at LBCT or Maher. We trust this clarifies the issue, but please advise if further clarification is needed.

With respect to Interrogatory No. 6, SEA has reassessed OOCL's response. SEA maintains that the full measure of its request in Interrogatory No. 6 is reasonably calculated to lead to the discovery of admissible evidence and is thus discoverable. However, SEA agrees to forgo the full extent of its request and accept the produced spreadsheet (OOCL_005366) and accompanying tables in lieu of further information. Accordingly, SEA withdraws Interrogatory No. 6 from its Motion to Compel.

Should OOCL disagree with the content or characterization of any of the above, please respond by letter no later than February 11, 2026.

Sincerely,



Peter F. Black
MILLS BLACK LLP
Counsel to Samsung Electronics America, Inc.

APPENDIX I [REVISED]

EXAMPLES OF OOCL INCOMPLETE PRODUCTION

During its analysis of OOCL's production against SEA's, SEA identified documents in OOCL's possession, custody, or control that OOCL did not produce. A few examples of such documents are set out below.

1. 24-17_SEA_00006313 (shipment identifiers and bill of lading information).

SEA produced 24-17_SEA_00006313, an email from LGBIMPORT@oocl.com sent to ADCINBOUND2@sea.samsung.com and jjimenez@ups.com, in response to OOCL's Interrogatory No. 9 (seeking bill of lading numbers, invoice numbers, container numbers, and amounts claimed). SEA's version of that email from OOCL's Long Beach (California) office contains bill of lading information, shipment identifiers, and relevant communications within the relevant time period.

OOCL should have produced its version of this email in response to SEA's Interrogatory No. 1, but did not. OOCL also failed to produce potentially related documents, including internal communications concerning the same subject.

2. 24-17_SEA_00002232 (communications responsive to SEA RFPs).

SEA produced 24-17_SEA_00002232, an email from LGBIMPORT@oocl.com to various recipients at SEA and UPS, in response to OOCL's Interrogatory No. 10. OOCL should have produced this same document in response to SEA's RFP Nos. 4, 5, and 10, but did not.

3. 24-17_SEA_00000441 (container pickup and delivery communications).

SEA produced 24-17_SEA_00000441, an email chain between SEA, OOCL, and Gold Point regarding pick-up and delivery of containers, in response to RFP No. 3. OOCL should have produced this document in response to SEA's RFP Nos. 4 and 5, but it did not.

4. 24-17_SEA_00002207 (OOCL notice of potential detention).

SEA produced 24-17_SEA_00002207, an email from OOCL to SEA providing notification of a potential detention charge, in response to OOCL's RFP No. 8. OOCL was obligated to produce this document, and others like it, and related materials in response to SEA's RFP No. 4, yet it did not.

5. 24-17_SEA_00006313 (same document as Item 1; additional relevance to detention charge communications and policy relevance).

SEA also produced 24-17_SEA_00006313 in response to OOCL ROG No. 15: an email from LGBIMPORT@oocl.com to SEA and UPS regarding detention charges at the Long Beach terminal. OOCL should have produced this document and related materials in response to SEA's ROG Nos. 1 and 3, and SEA's RFP No. 5, but did not. This confirms that OOCL did not capture and produce core detention-related communications from key OOCL mailboxes even when those communications are plainly relevant to SEA's discovery requests.

6. 24-17_SEA_00002775 (arrival notice; processing failure example).

SEA produced 24-17_SEA_00002775, an arrival notice from OOCL to SEA, in response to OOCL's RFP No. 5. OOCL appears to have attempted to produce this and similar documents but did not produce them in a usable form. For example, OOCL_0010785 contains only the document heading and no substantive content.

7. 24-17_SEA_00000761 (chassis issues and impacts).

SEA produced 24-17_SEA_00000761, an email chain between OOCL and SEA in which OOCL contends it has no responsibility regarding chassis arrangements and reflects OOCL's awareness of chassis issues at the Long Beach terminal, in response to OOCL ROG No.

14. OOCL should have produced this email and related materials in response to SEA's RFP Nos. 5 and 10, but it did not.

8. 24-17_SEA_00000869 (incomplete thread versus OOCL production).

SEA produced 24-17_SEA_00000869, an email chain between OOCL and SEA discussing invoice approvals, reflecting SEA's approval of a number of invoices, in response to OOCL's RFP No. 8. OOCL produced OOCL_0008999, responsive to SEA's RFP No. 14, with the same subject heading, but the OOCL-produced chain does not include the exchange reflected in 24-17_SEA_00000869. This demonstrates incomplete thread capture and/or incomplete family production.

9. 24-17_SEA_00051724 (empty return communications).

SEA produced 24-17_SEA_00051724, an email chain between SEA and OOCL discussing the return of empty containers, in response to OOCL RFP No. 19. OOCL should have produced this and related materials in response to SEA's RFP No. 4, but did not.

10. 24-17_SEA_00049902 (free storage/long-dwell notice; CY designation).

SEA produced 24-17_SEA_00049902, an email chain from OOCL to SEA notifying SEA that a shipment remained in the terminal beyond the expiration of the Free Storage Period at Bethel, PA, and identifying the cargo under CY terms, in response to OOCL RFP Nos. 8 and 19. OOCL should have produced this document and related materials in response to SEA's RFP No. 4, but did not.